

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 510311/2019

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TYRONE VARICK,
Plaintiff,

- against -

**AMENDED VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER
SEAN INMAN, POLICE OFFICER JOSE CADAVID,
POLICE OFFICER NICHOLAS SIERRA, POLICE
OFFICER LYNNE BLAS,

Defendants,

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Plaintiff, TYRONE VARICK, by his attorneys alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff TYRONE VARICK brings this action for compensatory damages, punitive damages, and attorney’s fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.
2. That at all times hereinafter mentioned, the DEFENDANT THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.
3. That at all times hereinafter mentioned, the DEFENDANTS SEAN INMAN and POLICE OFFICER JOSE CADAVID, , POLICE OFFICER JOSE CADAVID, POLICE OFFICER NICHOLAS SIERRA, POLICE OFFICER LYNNE BLAS were employees of the New York City Police Department, acting in their capacity as a police officers, and under color of law.
4. That all acts and incidents complained of herein occurred in Kings County, City, and State of New York.
5. That within 90 days after the state law claim of Malicious Prosecution accrued, Plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the Plaintiff and Plaintiff’s attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the DEFENDANTS by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.
6. That Plaintiff appeared for a hearing pursuant to §50-H of the General Municipal

Law on or about October 9, 2018.

7. That the DEFENDANTS have not adjusted, settled or paid the same.

8. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York state law claims are based.

9. That all conditions and requirements precedent to the commencement of this action have been complied with.

10. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS owed the Plaintiff a non-delegable duty of care.

11. Pursuant to CPLR Section 1602(7), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS acted with reckless disregard of the safety of others.

12. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiff's damages.

13. That by reason of the foregoing, this Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS

14. On or about May 31, 2018 at about 7:30 pm, Plaintiff Tyrone Varick was at his prior residence located at 216 Hancock Street. Mr. Varick and his sister, Brenda Pearson, had been involved in a dispute over ownership of the property that had been continuing for years.

15. During this ownership dispute, the parties who claimed ownership of the properties would consistently use the New York Police Department ("NYPD") to attempt to perform illegal constructive evictions.

16. In attempting to prevent the taking of their property, Plaintiff Tyrone Varick as well

as Brenda Pearson went to Kings County Civil Court to contest their illegal eviction. By an order dated March 20, 2018, under Index No. 12895-2018, and signed by the Honorable Cheryl Gonzales, Mr. Varick was allowed to return to the premises to recover his property.

15. Though Mr. Varick had the court order, the house was boarded up and It was difficult for Mr. Varick to recover all of his property. Through the pendency of the order until May 31, 2018, Plaintiff was unable to recover all of his property.

16. Later, Ms. Pearson and Mr. Varick went back to court and, by a court order dated April 3, 2018 and under index number 13282-2018, were granted possession of the premises.

17. At the scene, Plaintiff Varick presented DEFENDANT INMAN and DEFENDANTS POLICE OFFICER SEAN INMAN, POLICE OFFICERJOSE CADAVID, POLICE OFFICER NICHOLAS SIERRA, POLICE OFFICER LYNNE BLAS copies of these documents. Despite Plaintiff possessing legal documents allowing entry and possession of the property, DEFENDANT INMAN proceeded to arrest Plaintiff.

20. Mr. Varick was unlawfully arrested and, inter alia, charged with PL § 140.15, criminal trespass in the second degree.

21. Despite reviewing these documents and knowing that Plaintiff had a legal right to be at the property, DEFENDANTS JOHN AND JANE DOES 1-3 did not intervene or attempt to prevent DEFENDANT INMAN from executing an unlawful arrest.

21. Plaintiff was arraigned on June 01, 2018 and was released on his own recognizance.

22. Plaintiff was incarcerated for approximately one day.

23. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

24. These charges against Plaintiff was based entirely on the false allegations and fabrications by POLICE OFFICER JOSE CADAVID, POLICE OFFICER JOSE CADAVID, POLICE OFFICER NICHOLAS SIERRA, POLICE OFFICER LYNNE BLAS 3.

25. All criminal charges against Plaintiff relating to this arrest were dismissed on or about August 06, 2018.

26. Plaintiff was illegally was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief,

agents employed by the New York City Police Department.

27. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

28. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.

29. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

30. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

32. That on May 31, 2018, and at all times hereinafter mentioned and upon information and belief, DEFENDANTS, without justification and without probable cause, imprisoned the Plaintiff.

33. That the DEFENDANTS' acting under the color of the law, intentionally confined the Plaintiff against his will and said confinement was not privileged.

34. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

35. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C 1983**

36. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

37. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK POLICE DEPARTMENT and CITY OF NEW YORK.

38. As a result of the aforesaid conduct by DEFENDANTS, Plaintiff was subjected to illegal, improper and false arrest by the DEFENDANTS and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

39. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

40. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**THIRD CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER STATE AND FEDERAL LAW**

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

42. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANTS and other unidentified officers of the NYPD present on the scene without probable cause.

43. DEFENDANTS commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

44. DEFENDANTS commenced this criminal action out of malice.

45. The criminal action against Plaintiff has terminated in his favor.

46. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

47. That Plaintiff was conscious of the confinement.

48. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment,

emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

49. The acts and conduct of the DEFENDANTS were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

50. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

51. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**FOURTH CAUSE OF ACTION:
NEGLIGENT HIRING AND RETENTION**

52. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

53. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

54. The misconduct by DEFENDANTS SEAN INMAN and POLICE OFFICER SEAN INMAN, POLICE OFFICER ERIC MORALES, POLICE OFFICER JOSE CADAVID, POLICE OFFICER NICHOLAS SIERRA, POLICE OFFICER LYNNE BLAS described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

55. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**FIFTH CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

56. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

57. The DEFENDANT, THE CITY OF NEW YORK, including but not limited to DEFENDANTS, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.

58. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.

59. That as a result of said intentional and negligent acts, the Plaintiff received serious injuries in diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.

60. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**SIXTH CLAIM CAUSE OF ACTION:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE
PROCESS OF LAW UNDER 42 U.S.C 1983**

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

62. DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny. DEFENDANTS failed to inform the Kings County District Attorney's Office of the multiple court orders granting access and possession of the premises.

63. The Individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

64. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

65. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**SEVENTH CAUSE OF ACTION:
ASSAULT AND BATTERY UNDER NEW YORK STATE LAW**

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

67. That, on May 31, 2018, DEFENDANTS, who were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

68. That, on May 31, 2018 DEFENDANTS committed an assault and battery knowingly, intentionally, and willfully.

69. That, on May 31, 2018, DEFENDANTS who committed the aforementioned assault and battery upon the Plaintiff Tyrone Varick were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK.

70. That, on May 31, 2018, the assault and battery on the Plaintiff was without probable cause and was not the result of an unlawful arrest.

71. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**EIGHTH CAUSE OF ACTION:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

72. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

73. Those DEFENDANTS that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

74. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**NINTH CAUSE OF ACTION:
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

75. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

76. By virtue of the aforementioned acts, the Individual DEFENDANTS are liable to Plaintiff for violating his right to due process under Article I, § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

77. DEFENDANT THE CITY OF NEW YORK and the New York City Police Department are liable for these violations of the New York State Constitution under the principle of respondeat superior.

DAMAGES

78. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

79. This action seeks damages from on or prior to May 31, 2018 through the present.

80. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be maliciously prosecuted, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

81. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of family, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.

82. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
April 18, 2021

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
TYRONE VARICK
14 Wall St., Ste 1603
New York, NY 10005

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney of record for Plaintiff TYRONE VARICK. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
April 18, 2021



MASAI I. LORD
Counsel for Plaintiff